WARRANTY ATLAS · Mississippi (MS)

Law last amended: 2021 (eff. 2021-07-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-11-09

Cites: Miss. Code Ann. §§ 63-17-85(j), 63-17-86 (compensation; labor-rate method); Miss. Code Ann. § 63-17-117 (warranty audits, chargebacks); Miss. Code Ann. §§ 63-17-85 (license sanctions, civil penalty), 63-17-101, 63-17-119 (damages)

Labor reimbursement by coverage type

Coverage	Status	Paid hours	Pinpoint / date note
Factory warranty	**Required**	Factory time (reasonable/adequate standard where stated)	§ 63-17-85(j)
Mfr-backed service contract	**Not addressed**	-	§ 63-17-55(ee)
CPO warranty	**Conditional**	Factory time (reasonable/adequate standard where stated)	§ 63-17-55(ee)
Independent service contract	**Not addressed**	-	§ 63-17-55(ee)

Hourly rate: At the dealer's written request, the retail rate is total labor charges on qualified repairs divided by hours. The sample is all consecutive ROs containing 100 sequential qualified-repair ROs, or all ROs closed in 90 consecutive days, whichever gives fewer, no older than 180 days. The rate is presumed reasonable and takes effect 45 days after receipt unless the manufacturer rebuts once. The dealer may protest to the Motor Vehicle Commission, where the manufacturer bears the…

Audit fields

Field	Rule	Pinpoint
Claim decision	30 days; late claim deemed approved: no rule in statute. Written notice of disapproval within the 30 days, stating 'the specific grounds upon which the disapproval is based'. No denial based solely on an incidental clerical or administrative failure that does not question legitimacy (§ 63-17-117(3)).	Miss. Code Ann. § 63-17-85(j) (codified text, Justia 2025);…
Payment	30 days after approval. Dealer filing deadline: Silent. None stated for warranty claims. The 60-day amended/supplemental-claim right in § 63-17-117(3) covers incentive claims only.	
Chargebacks	12 months; fraud: Audit and chargeback limits 'shall not be effective in the case of in…. The window runs from payment of the disputed claim. Chargeback only if the manufacturer shows by a preponderance of the evidence that the claim was false or fraudulent, the repairs were improper or unnecessary under generally accepted workmanship standards, o…	Miss. Code Ann. § 63-17-117(1); (2), (4)
Rate resubmission	once per twelve-month period. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Discounted / promotional, Other (see text), Internal, Routine maintenance, Accessories, Tires, Alignments, Prep / reconditioning, State inspections, Government, Insurance-paid, Collision / body / glass, Goodwill.	Miss. Code Ann. § 63-17-86(1); formula (2); frequency (3);…
Mfr response	45 days; no response = approved: Yes. Challenge: The submitted rate is presumed reasonable. To rebut, the manufacturer must reasonably substantiate that it is 'materially incomplete, materially inaccurate or ... materially unreasonable'. Forum: Protest to the Mississippi Motor Vehicle Commission within 60 days of….	Miss. Code Ann. § 63-17-86(5)-(6)
Penalties	§ 63-17-119(1): a dealer with pecuniary loss from a violation may recover damages plus costs, including reasonable attorneys' fees. Out-of-state venue and jury waivers are void. § 63-17-101: a licensee may recover reasonable damages and attorney fees for another licensee's willful noncompliance. § 63-17-85(j)-(k): Motor Vehicle Commiss…	Miss. Code Ann. §§ 63-17-85, 63-17-101, 63-17-119
Audit procedures	Audit climate score 27/100 (Moderate restrictiveness; chargeback limits 27/75 + process and oversight 0/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: no; extrapolation: silent; clerical-error protection: yes; rate validation: broader or no procedure.	

Statute quotes

Claims *(Miss. Code Ann. § 63-17-85(j) (codified text, Justia 2025);…): "All claims made by motor vehicle dealers hereunder for such labor and/or parts shall be paid within thirty (30) days following their approval. All such claims shall be either approved or disapproved within thirty (30) days after their receipt"*
Chargebacks *(Miss. Code Ann. § 63-17-117(1); (2), (4)): "Any audit for warranty parts or service compensation shall be performed within the twelve-month period immediately following the date of the payment of the disputed claim by the manufacturer or distributor."*
Rate *(Miss. Code Ann. § 63-17-86(1); formula (2); frequency (3);…): "all consecutive repair orders that include one hundred (100) sequential repair orders reflecting qualified repairs, or all repair orders closed during any period of ninety (90) consecutive days, whichever produces the fewer number of repair orders"*
Factory time *(§ 63-17-85(j)): "Time allowances for the diagnosis and performance of warranty work shall be reasonable and adequate for such work to be performed using the actual time required by a qualified technician of ordinary skill to perform such work."*

Notes

The official Mississippi Code is Lexis-only. Text comes from the enrolled 2021 HB 746 and matches the Justia 2025 mirror; the codified § 63-17-85(j) drops 'incidental expenses'. The statute has no deemed-approval rule for warranty claims. The payment clock runs only from approval. Dealers may not charge the manufacturer a labor rate 'in excess of the rate charged to its retail customers'. Time allowances must be 'reasonable and adequate' using 'the actual time required by a qualified technician of ordinary skill'. 'Warranty work' covers new-vehicle warranty, recall and CPO warranty, not service contracts. Recall and stop-sale claims follow the same § 63-17-85(j) limits (§ 63-17-73(4)(f)). The MMVC agency website still shows pre-2021 text.

Source: enrolled_act · https://billstatus.ls.state.ms.us/documents/2021/html/HB/0700-0799/HB0746SG.htm (enrolled HB 746, Laws 2021 ch. 315). C… · Confidence: high.
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